



File No.: EXP202210178

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) on September 22, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against the COMMUNITY OF PROPERTY OWNERS R.R.R., with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The claimant requests that the Community of Property Owners to which they belong publish a copy of the minutes of the Ordinary General Meeting of the COMMUNITY OF PROPERTY OWNERS R.R.R., held on April 11, 2022, on a notice board located in a public place, which contains personal data of the owners listed, including that of the claimant, such as: first name, last name, as well as various circumstances related to the situation of the Community following the resolutions of the Provincial Court.

Along with the complaint, a copy of the minutes of the Ordinary General Meeting of the COMMUNITY OF PROPERTY OWNERS R.R.R., held on April 11, 2022, is provided, as well as various photographs in which the document subject to the complaint appears displayed on the aforementioned notice board.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by electronic notification, was received on October 5, 2022.

No response has been received to this forwarding letter.

Although the notification was validly carried out by electronic means, the sending was reiterated by electronic notification, which was duly notified on November 30, 2022, as stated in the certificate in the file.

No response has been received to this forwarding letter.

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THIRD: On January 11, 2023, in accordance with Article 65 of the LOPDGDD, the admission of the complaint filed by the claimant was communicated.

FOURTH: On June 1, 2023, the Director of the Spanish Agency for Data Protection decided to initiate a sanctioning procedure against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.4 of the GDPR and Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, it stated that it has never published a copy of the minutes of the ordinary general meeting of the community held on April 11, 2022, where personal data of the owners were recorded, on a notice board located in a public place.

This community states that although the notice board of the Community is not in a public place but within the private urbanization itself, the minutes of the Community are not published on the old notice

board located within the common areas of this urbanization, but are sent to each owner individually at their home, which does not violate data protection regulations since all recipients of the minutes are owners and members of the Community.

It is also pointed out that it may have been the claimant who published said minutes since they provided as the notification address of the Community the ***ADDRESS.1, which coincides with their own address, knowing that they were already ceased from the position of administrator, thereby ensuring that the Community of Property Owners is unaware of these facts and cannot defend itself. Therefore, in any case, this Community considers that it is appropriate to declare null the actions taken previously due to the defenselessness generated for the respondent by not having been notified at the current address of this Community but at the residence of the complainant, as the complainant themselves is the recipient of all actions of this file, which violates the most essential principles of a sanctioning administrative procedure.

SIXTH: On October 10, 2023, the instructor of the procedure agreed to reproduce for evidentiary purposes the complaint filed by A.A.A. and its documentation, the documents obtained and generated during the admission phase of the complaint, and the report of prior investigative actions that are part of the procedure.

Furthermore, the allegations regarding the initiation agreement of the referenced sanctioning procedure, submitted by the COMMUNITY OF PROPERTY OWNERS R.R.R., and the accompanying documentation are also reproduced for evidentiary purposes.

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SEVENTH: On December 11, 2023, a resolution proposal was issued proposing that the Director of the Spanish Agency for Data Protection ARCHIVE the sanctioning procedure against the COMMUNITY OF OWNERS R.R.R., with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR classified under Article 83.5 of the GDPR, with an administrative fine of 1,000 € (one thousand euros) and for the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of said regulation, with an administrative fine of 500 € (five hundred euros).

EIGHTH: On December 22, 2023, allegations were received from the respondent against the proposal to archive the present sanctioning procedure, stating that they do not understand why they are being sanctioned, despite the AEPD indicating that: "it recognizes the possibility that it was the complainant who published said minutes since they provided the ***ADDRESS.1 as the notification address of the Community, which coincides with their own address, knowing that they were already dismissed from the position of administrator, thereby ensuring that the Community of Owners is unaware of these facts and cannot defend itself. Therefore, in any case, this Community considers that it is appropriate to declare null the actions taken previously due to the defenselessness generated for the sanctioned party, as they were not notified at the current address of this Community but at the residence of the complainant, with the complainant being the recipient of all actions of this file, which violates the most essential principles of an administrative sanctioning procedure."

In response to this allegation, the AEPD informs the respondent that what is stated in the resolution proposal is as follows:

"That the Director of the Spanish Agency for Data Protection ARCHIVE the sanctioning procedure against the COMMUNITY OF OWNERS R.R.R., with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR classified under Article 83.5 of the GDPR, with an administrative fine of 1,000 € (one thousand euros) and for the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of said regulation, with an administrative fine of 500 € (five hundred euros)."

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The publication on a notice board located in a public place of a copy of the Minutes of the

Ordinary General Meeting of the COMMUNITY OF OWNERS R.R.R., held on April 11, 2022, which contains personal data of the owners listed, including those of the complainant, such as: name, surname, as well as various circumstances relating to the situation of the Community following the resolutions of the Provincial Court.

SECOND: The respondent states that the minutes of the Community are not published on the old notice board located within the common areas of this urbanization, but are sent to each co-owner individually at their home, by the address of C/ Jorge Juan, 6, www.aepd.es, 28001 – Madrid, sedeagpd.gob.es.

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who denies that the community has published any copy of the minutes on its notice board.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The claimed facts materialize in the availability of the minutes of the Ordinary General Meeting of the COMMUNITY OF OWNERS R.R.R., on the notice board of the claimed Community of Owners, located in a public area, where personal data of the owners, including that of the claiming party, such as their name and surname, are displayed in such a way that it can be observed by any person, which could imply a violation of the regulations on the protection of personal data.

The claimed party states that at no time has it published a copy of the minutes of the ordinary general meeting of the community, held on April 11, 2022, where personal data of the owners were recorded, on a notice board located in a public area.

It also states that although the notice board of the Community is not in a public area but within the private urbanization itself, the minutes of the Community are not published on the old notice board located within the common areas of this urbanization, but are sent to each owner individually at their home, which does not violate data protection regulations since all recipients of the minutes are owners and members of the Community.

In response to the allegations presented by the claimed entity, it should be noted that the community of owners is responsible for the processing of personal data of the residents of that community, ensuring at all times that it respects the principles of integrity and confidentiality recognized in the GDPR.

The dissemination of personal data in spaces that are not restricted to the owners, on the walls of the entrances or on common use notice boards, could violate data protection regulations. However, the responsibility for any potential infringement could only be determined if some means of proof were provided that would allow establishing who disseminated the personal data.

This is so because access to personal data must comply with a series of principles in order not to violate data protection regulations.

The cases in which public access to personal data related to matters arising from the management of the Community of Owners is authorized are specified in Law 49/1960, of July 21, on horizontal property (hereinafter, LPH).

In general, Article 9.h) of the LPH indicates as an obligation of the owner the following:

"To communicate to whoever performs the functions of secretary of the community, by any means that allows for proof of its receipt, the address in Spain for the purposes of summons and notifications of all kinds related to the community. In the absence of this communication, the address for summons and notifications shall be deemed to be the apartment or premises belonging to the community, with full legal effects for those delivered to the occupant thereof."

If a summons or notification to the owner is impossible to carry out at the place provided for in the previous paragraph, it shall be understood to have been made by placing the corresponding communication on the notice board of the community, or in a visible place of general use designated for that purpose, with diligence expressing the date and reasons for proceeding with this form of notification, signed by whoever performs the functions of secretary of the community, with the approval of the president. The notification made in this manner shall produce full legal effects within three calendar days."

In the present case, access to personal data on the aforementioned notice board, such as the name and surname, does not seem to comply with the assumptions set forth in the LPH, as there does not appear to be a need or legal authorization to display the document subject to the claim.

The Community of Owners, in the exercise of its functions, processes personal data of the individuals who own the homes located in the building. It carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

"data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.

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Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter referred to as security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or to unauthorized communication or access to such data."

In the present case, there is a personal data security breach under the circumstances indicated above, categorized as a confidentiality breach, as the minutes of the Ordinary General Meeting of the COMMUNITY OF PROPERTY OWNERS R.R.R., held on April 11, 2022, were published on the notice board located in a public area, which contained personal data of the owners listed, including that of the claimant, such as: name and surname.

Within the principles of processing provided in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in paragraph 1.f) of Article 5 of the GDPR.

On the other hand, the security of personal data is regulated in Article 32 of the GDPR, which governs the security of processing.

III

Despite all that has been indicated, this Agency considers that sufficient evidence has not been provided to rebut the presumption of innocence, as the claimant's assertions can be refuted by those argued by the community in its allegations, since the defendant has repeatedly stated the possibility that other individuals, such as the previous management of the community or other neighbors, may have had access to the key of the display case of the notice board, therefore it is not sufficiently proven who is the owner of the facts that concern us.

"The Constitutional Court (SSTC 131/2003 and 242/2005, among others) has ruled in this regard by indicating that one of the requirements inherent to the right to the presumption of innocence is that the sanction must be based on acts or incriminating evidence of the conduct attributed and that the burden of proof of the commission of the administrative offense and the participation in it of the accused falls on the acting public administration.

For its part, Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector establishes as one of the principles of the sanctioning power the principle of "Responsibility" and determines in this regard that:

"Only individuals and legal entities, as well as, when a law recognizes them the capacity to act, groups

of affected individuals, unions, and entities without legal personality and independent or autonomous assets, that are responsible for the same due to intent or negligence, may be sanctioned for acts constituting administrative infractions."

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Likewise, it must be taken into account what is established in Article 53.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which states that:

"In addition to the rights provided in the previous paragraph, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights: (...)

b) To the presumption of non-existence of administrative responsibility until proven otherwise."

Therefore, after a thorough study of the documents in this file, it seems appropriate to think that there is no certainty regarding the ownership of the facts that concern us, as there are several individuals who could have had access to the key of the display case of the notice board, where the minutes containing personal data were placed.

Thus, after becoming aware of these facts, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

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